

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #02	CCRB Case #: 201705086	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/20/2017 12:50 AM	Location of Incident: East Fordham Road and Southern Boulevard	18 Mo. SOL 7/20/2018	Precinct: 48
Date/Time CV Reported Thu, 06/22/2017 1:53 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/22/2017 1:53 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Capobianco	20413	958365	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Dmitriev	07245	954740	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Capobianco	Discourtesy: Police Officer Matthew Capobianco spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On June 22, 2017, § 87(2)(b) filed this complaint via the CCRB website.

At 12:50 a.m. on January 20, 2017, § 87(2)(b) was driving southbound on Southern Boulevard in the Bronx when he took a left turn onto East Fordham Road. Shortly thereafter he was pulled over by a police vehicle occupied by Police Officers Matthew Capobianco and Michael Dmitriev of the 48th Precinct. After approaching the driver's side of the vehicle, Police Officer Capobianco told § 87(2)(b) that he had failed to properly signal. § 87(2)(b) contested that he had signaled properly. He handed his license and registration to Police Officer Capobianco, who walked back to the police vehicle, wrote a summons for an improper turn (Board Review 04), and returned to § 87(2)(b)'s vehicle. He handed the summons to § 87(2)(b) and told him that he had failed to signal properly. § 87(2)(b) continued to protest that he had not failed to signal. Police Officer Capobianco began to walk away and allegedly told § 87(2)(b) that he would see him in "fucking court" (**Allegation A**). The officers drove away without further incident.

Cell phone camera footage was recorded by § 87(2)(b) as the officers drove away from his vehicle. The footage did not capture any relevant portions of the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was presented with and refused mediation § 87(2)(b)
- An Notice of Claim search request has been submitted to the New York City Comptroller's Office and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- According to both § 87(2)(b) and Police Officer Capobianco, § 87(2)(b) contested the summons he was issued in traffic court, where it was ultimately upheld.

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) (Board Review 02).
- Police Officer Capobianco has been a member of the NYPD for two years and has no previous CCRB allegations.

Findings and Recommendations

Allegation A -Discourtesy: Police Officer Matthew Capobianco spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) filed this complaint via the CCRB website on June 22, 2017 (Board Review 05). § 87(2)(b) provided a telephone statement on July 3, 2017 (Board Review 03), and was interviewed at the CCRB on July 14, 2017. Police Officer Capobianco was interviewed on August 1, 2017. Police Officer Dmitriev was interviewed on August 9, 2017.

§ 87(2)(b) § 87(2)(g) stated that at approximately 12:50 p.m. on January 20, 2017, he was driving alone, southbound on Southern Boulevard, when

he took a left (eastbound) onto East Fordham Road. Shortly thereafter he was pulled over by a police vehicle. Police Officer Matthew Capobianco, who was alone, approached the driver's side of the vehicle and asked for his license, registration, and insurance. He told § 87(2)(b) that he had made a "bad turn back there." § 87(2)(b) insisted that he had properly signaled. Police Officer Capobianco asked § 87(2)(b) to demonstrate that his signals worked properly, which he did. Police Officer Capobianco walked back to the police vehicle and wrote a summons. After approximately five minutes he returned to § 87(2)(b)'s vehicle and handed him a summons which stated, "improper turn." He repeated that § 87(2)(b) had failed to make a proper turn. § 87(2)(b) again insisted that he had made a proper turn. Police Officer Capobianco, this time louder, stated that § 87(2)(b) had made an improper turn. § 87(2)(b) again replied that he had made a proper turn. Police Officer Capobianco turned back to his vehicle, said, "Whatever," and said that he would see § 87(2)(b) "in fucking court." § 87(2)(b) did not respond. Police Officer Capobianco returned to his vehicle and drove away.

§ 87(2)(g)

§ 87(2)(b). In his online complaint, he provided Police Officer Capobianco's statement as "That's too bad, you can fight it in fucking court." In his telephone statement, he provided it as either, "We'll see each other in fucking court," or, "I'll see you in fucking court." Finally, in his sworn statement, he provided it as noted in the statement above.

Police Officer Capobianco § 87(2)(g) stated Police Officer Dmitriev was present and was at the passenger's side of the vehicle for the entirety of the incident, and he denied saying that he would see § 87(2)(b) "in fucking court."

Police Officer Dmitriev § 87(2)(g) did not hear Police Officer Capobianco say that he would see § 87(2)(b) in "fucking court."

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **Unsubstantiated**.

Squad 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

